Matter of Mendel S. v Faigy S.
2026 NY Slip Op 26118
July 31, 2026
Family Court, Kings County
Laura M. Paley, J.
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In the Matter of an Article 4 Support (IV-D) Proceeding Mendel S. (Petitioner)

v

Faigy S. (Respondent)

Family Court, Kings County
Decided on July 31, 2026
File No. 186725

LAURA M. PALEY, J.

[*1]

This constitutes the Court's decision on its own *sua sponte* order to show cause ("OTSC") as to why it should not sanction Connor C., Esq.[FN1] and/or refer Connor C., Esq. to the Attorney Grievance Committee for frivolous and sanctionable conduct under 22 NYCRR §130-1.1.

Counsel filed an Objection pursuant to Family Court Act s. 439[e] on behalf of his client challenging an Order of Dismissal of a child support petition for failure to appear. Upon review of the Objection, the Court discovered that Counsel repeatedly cited "hallucinated cases"—fictitious judicial authorities generated by artificial intelligence that do not exist or do not stand for the propositions asserted.[FN2] Eleven of the sixteen citations were fabricated, and in **[*2]**nearly all instances, the real cases (once located by the Court) did not support the propositions for which counsel cited them.

The Court suspected that the proffered citations within the Objections were a produced through counsel's use of generative artificial intelligence ("GenAI") which he did not properly review or scrutinize, prompting issuance of the instant *sua sponte* OTSC. Counsel was directed to show cause by written submission as to why he should not be sanctioned and/or referred to the Attorney Grievance Committee for frivolous and sanctionable conduct under 22 NYCRR §130-1.1.

See Selletti v Liotti, 104 AD3d 835, 836 [2d Dept 2013] ("the defendant was afforded an opportunity to be heard and to oppose the cross motion [thus] a hearing was not required").

Counsel filed a written response ("Response") to this Court's OTSC, which included an affirmation by counsel [FN3], a log of all citations and his post hoc review results (Response Ex. A), a certificate of completion for a continuing legal education ("CLE") course on developing an AI policy for law firms (Response Ex. B), and four letters attesting to his character and/or professionalism.[FN4]

The growing use of AI in the legal field brings with it great opportunity for attorneys to increase efficiency and productivity and assist them in providing better legal advice to clients.[FN5] But far too often, the use of AI leads to the opposite outcome; attorneys using AI without an understanding of how it works, insufficient training on its use, or reckless disregard for its dangers lead to serious consequences for the attorneys and their clients and waste judicial resources.[FN6]

Much has been written world-wide in the last few years on the pitfalls of AI use in the legal sphere along with warnings about caution for proper use.[FN7] Guidance has been issued for both practitioners and judges by various entities.[FN8] Despite this, improper use of GenAI in the production of documents submitted to courts or by the court itself, remains a serious risk to the integrity of judicial administration.

Over three years ago, the Southern District of New York recognized that "[m]any harms flow from the submission of fake opinions":

> The opposing party wastes time and money in exposing the deception. The Court's time is taken from other important endeavors. The client may be deprived of arguments based on authentic judicial precedents. There is potential harm to the reputation of judges and courts whose names are falsely invoked as authors of the bogus opinions and to the [*3]reputation of a party attributed with fictional conduct. It promotes cynicism about the legal profession and the American judicial system. And a future litigant may be tempted to defy a judicial ruling by disingenuously claiming doubt about its authenticity.

Mata v Avianca, Inc., 678 F Supp 3d 443, 448-49 [SDNY 2023]

Since 2023, numerous courts have addressed the issue of practitioners submitting "hallucinated cases."

While we are still in the early days of AI use in the legal field, this does not excuse practitioners and courts alike from understanding proper use of this rapidly expanding technology. In fact, the growth of AI tools places upon attorneys and courts the affirmative obligation to stay current on this evolving technology. The New York State Bar Association Commentary to the New York Rules of Professional Conduct states that, "To maintain the requisite knowledge and skill, a lawyer should keep abreast of the benefits and risks associated with technology the lawyer uses to provide services to clients or to store or transmit confidential information..." Comment (8) of Rules of Professional Conduct (22 NYCRR 1200.0) Rule 1.1. *See also* Model Rules of Prof'l Conduct R. 1.1 cmt. 8, Am. Bar Ass'n ("To maintain the requisite knowledge and skill, a lawyer should keep abreast of changes in the law and its practice, *including the benefits and risks associated with relevant technology*, engage in continuing study and education and comply with all continuing legal education requirements to which the lawyer is subject.") (emphasis added).

Pursuant to 22 NYCRR 130-1.1, a "court, in its discretion may impose financial sanctions upon any party or attorney in a civil action or proceeding who engages in frivolous conduct as defined in this Part " 2 NYCRR 130-1.1[a]. "For purposes of this Part, conduct is frivolous if: (1) it is completely without merit in law and cannot be supported by a reasonable argument for an extension, modification or reversal of existing law; (2) it is undertaken primarily to delay or prolong the resolution of the litigation, or to harass or maliciously injure another; or (3) it asserts material factual statements that are false." 22 NYCRR 130-1.1[c]. "In determining whether the conduct undertaken was frivolous, the court shall consider, among other issues the circumstances under which the conduct took place, including the time available for investigating the legal or factual basis of the conduct, and whether or not the conduct was continued when its lack of legal or factual basis was apparent, should have been apparent, or was brought to the attention of counsel or the party." *Id.*

Failure to properly scrutinize A.I.-generated work may amount to frivolous and sanctionable conduct under 22 NYCRR §130-1.1. Courts at both the state and federal level have repeatedly held that submitting fictitious or nonexistent cases constitutes frivolous conduct subject to sanction. *See Landberg v City of New York*, 2026 NY Slip Op 03935, 7 [2d Dept June 23, 2026]; *Julien v Arthur*, 2026 NY Slip Op 03308, 2 [2d Dept May 27, 2026]; *Deutsche Bank Natl. Tr. Co. v LeTennier*, 250 NYS3d 260 [3d Dept 2026]; *Ader v Ader*, 87 Misc 3d 1213(A) [NY Sup 2025]; *Grymes Dev. Co. v Fodera*, 88 Misc 3d 767, 771 [Sup Ct 2025]; *Idehen v Stoute-Phillip*, 86 Misc 3d 1244(A) [Civ Ct 2025]l *Will of Samuel*, 82 Misc 3d 616 [Sur Ct 2024]; *Park v Kim*, 91 F4th 610, 616 [2d Cir 2024]; *Benjamin v Costco Wholesale Corp.*, 779 F Supp 3d 341, 350 [EDNY 2025]; *Mata v Avianca, Inc.*, 678 F Supp 3d 443 [SDNY 2023].

The Court finds counsel's conduct was frivolous given that he filed an Objection with the Court that repeatedly cited fictitious cases and authorities which did not support the arguments made. It would have taken minimal time for counsel — and it was also his responsibility as an attorney — to check the citations on Westlaw or Lexis to determine their veracity. *See* 22 **[*4]**NYCRR 130-1.1[c]; *see also Landberg v City of New York*, 2026 NY Slip Op 03935 [2d Dept June 23, 2026]; *Marrero v New York City Tr. Auth.*, 150 AD3d 1097, 1098 [2d Dept 2017]; *Grymes Dev. Co. v Fodera*, 88 Misc 3d 767, 772 [Sup Ct 2025].

Counsel's actions have also resulted in a waste of judicial resources. In 2024 alone, 32,879 "support-related" cases were filed in NYC Family Courts. *See* Franklin H. Williams Judicial Commission of the New York State Courts, 2026 Update on the 2022 Report on New York City Family Courts, pp. 25-26. There is no right to an appeal of a child support decision by a support magistrate. Rather, a party's remedy is to file an "Objection" pursuant to FCA s. 439[e], which is sent to Family Court judges to review and decide. These Objections are additional work on top of the voluminous cases over which Family Court judges preside. Using resources already stretched thin to wade through and inspect fabricated cases is a poor use of judicial resources.

The Court recognizes that counsel, upon receipt of this Court's *sua sponte* OTSC, timely filed his response, taking sole responsibility for submitting hallucinated cases to the Court. *C.f.* Deutsche Bank Natl. Tr. Co. v LeTennier, 250 NYS3d 260, 267 [3d Dept 2026] ("Where we are most troubled is that more than half of the fake cases offered by defendant came *after* he was on notice of such issue, whereby his reliance on fabricated legal authorities grew more prolific as this appeal proceeded — despite it being apparent to him that such conduct lacked a legal basis.). Counsel did not blame anyone else in his firm. The Court found his counsel's affirmation to be

earnest and remorseful although it is troubled that it was not affirmed under penalty of perjury, especially in light of the issue before the Court. *See* CPLR 2106; Great Lakes Ins. SE v Am. S.S. Owners Mut. Protection and Indem. Assn. Inc., 228 AD3d 429, 429 [1st Dept 2024] (affirmation inadmissible "as it did not contain the language required by CPLR 2106."). Counsel took a one-hour CLE course on AI, Ethics and Developing Your Law Firm AI Policy. *See* Response Ex B. However, "regret and apologies are not necessarily enough to avoid the imposition of sanctions for the submission of non-existent legal authority." Benjamin v Costco Wholesale Corp., 779 F Supp 3d 341, 350 [EDNY 2025].

"[T]he imposition of a sanction for frivolous conduct serves not only to punish a party for the offending conduct, but also to deter future frivolous conduct by other pro se litigants and attorneys." Julien v Arthur, 2026 NY Slip Op 03308, 2 [2d Dept May 27, 2026]. *See also* Deutsche Bank Natl. Tr. Co. v LeTennier, 250 NYS3d 260 [3d Dept 2026] ("[C]ourts must consider that sanctions are both retributive, in that they punish past conduct, but are also goal oriented, in that they are useful in deterring future frivolous conduct not only by the particular parties, but also by the bar at large.") (internal quotation marks omitted).

The Court finds, given the facts of this case and the response filed by counsel as described above, that sanctions are appropriate, but the Court will not refer Mr. C to the Attorney Grievance Committee. *See* 22 NYCRR § 100.3(D)(2); Idehen v Stoute-Phillip, 86 Misc 3d 1244(A) [Civ Ct 2025] ("Had [counsel] simply come to the hearing acknowledging that he had used Copilot to conduct his research, was unaware that the software could produce fake cases, and apologized for his mistake the Court would have likely determined that a sanction was sufficient to address the frivolous conduct."). *Contra* Park v Kim, 91 F4th 610, 616 [2d Cir 2024]; Ader v Ader, 87 Misc 3d 1213(A) [NY Sup 2025].

After reviewing sanctions imposed by other courts in similar situations, the Court concludes that a $1,000 sanction, payable to the Lawyers' Fund for Client Protection of the State of New York, is appropriate. *See* Idehen v Stoute-Phillip, 86 Misc 3d 1244(A) [Civ Ct 2025] **[*5]**(providing a survey of federal and state court-imposed sanctions on attorneys for submitting GenAI hallucinated cases).

Thus, it is hereby

ORDERED that within 20 days of service by email upon him of a copy of this opinion and order on motion, Connor C., Esq., is directed to pay a sanction in the sum of $1,000 to the Lawyers' Fund for Client Protection of the State of New York pursuant to 22 NYCRR 130-1.3; and it is further,

ORDERED within 10 days after payment of the sanctions, Connor C., Esq., shall file proof of payment with the Family Court.

DATE: July 31, 2026

ENTER:

Hon. Laura M. Paley

Judge of the Family Court

FOOTNOTES

Footnote 1 Pseudonym used to protect privacy.

Footnote 2 AI "hallucinated cases" refers to fictitious cases or those citated for incorrect propositions. "These hallucinations (fabricated or incorrect information) can be generated by LLMs in several ways:• Fabricate non-existent case names, statutes, or legal authorities• Distort or misrepresent facts, quotations, holdings of cases, analysis, or standards• Present unsupported propositions of law• Create false information about court procedures or filing requirements• Blend legal concepts or standards, such as from different laws, jurisdictions or contexts."Mark H. Francis and Ashwini Jarral (Lead Authors), *A Legal Practitioners Guide to AI and Hallucinations*, AI Policy Consortium for Law & Courts, Nat'l Ctr for State Courts [Jan. 2026].

Footnote 3 Counsel's written statement (labeled Reply OSC via Written Submission) initially failed to "affirm under the penalty of perjury" as required by CPLR 2106. This Court then granted leave to counsel to file an amended affirmation in compliant with CPLR 2106. Counsel submitted such timely.

Footnote 4 Two letters were from attorneys and one from the attorney's rabbi.

Footnote 5 ABA Standing Comm. on Ethics & Prof'l Responsibility, Formal Op. 512 [Jul. 29, 2024] ("In the realm of analytics, AI also can help lawyers predict how judges might rule on a legal question based on data about the judge's rulings; discover the summary judgment grant rate for every federal district judge; or evaluate how parties and lawyers may behave in current litigation based on their past conduct in similar litigation. And for basic legal research, AI may enhance lawyers' search results.")

Footnote 6 Neil Vigdor, *Judge Punishes 4 Lawyers After Catching Both Sides Using A.I. in Lawsuit,* The New York Times [Jun. 9, 2026] ("A federal judge in Mississippi has punished all four lawyers on opposing sides in a civil trial and canceled the proceedings after some of them, relying on artificial intelligence, cited fake legal cases in court filings. Two of the lawyers have been barred for two years from appearing in the U.S. District Court for the Northern District of Mississippi for their conduct, while all four were removed from the case and fined."); Santul Nerkar, *A.I. 'Hallucinations' Created Errors in Court Filing, Top Law Firm Says*, The New York Times [Apr. 21, 2026] ("An elite Wall Street law firm has apologized to a federal judge for submitting a court filing replete with errors created by artificial intelligence, including "hallucinations" that fabricated case citations."); Shaila Dewan, *Prosecutor Used Flawed A.I. to Try to Keep a Man in Jail, His Lawyers Say,* The New York Times [Nov. 25, 2025] (California prosecutors found to have used GenAI without proper safeguards)

Footnote 7 Cade Metz and Karen Weise, *A.I. Is Getting More Powerful, but Its*

Hallucinations Are Getting Worse, The New York Times [May 5, 2026, updated May 6, 2026] ("The latest OpenAI systems hallucinate at a higher rate than the company's previous system, according to the company's own tests."); Santul Nerkar, *A.I. 'Hallucinations' Created Errors in Court Filing, Top Law Firm Says*, The New York Times [Apr. 21, 2026]; David Simon, *Managing GenAI's Uneven Performance: A Governance Framework for Law Firms* [Mar. 26, 2026], available at SSRN: https://ssrn.com/abstract=6498498 (last accessed July 2, 2026) ("GenAI's value depends on the cognitive function being performed. For some categories of legal work, GenAI materially improves speed and quality; for others, it degrades reasoning, obscures judgment, and introduces professional risk. This is the "frontier" problem: a complex, shifting boundary between tasks where GenAI enhances performance and tasks where its use is affirmatively unsafe."); Julia Jiminez, *How Lawyers and Law Firms Can use AI Wisely to Build Checks and Balances into Litigation Workflows*, Am. Bar Ass'n [Dec. 22, 2025] ("Blindly trusting AI results is a sure way to violate your ethical obligations."); Lizzie Dearden, *England's High Court Warns Lawyers to Stop Citing Fake A.I.-Generated Cases,* The New York Times (Jun. 6, 2025) ("The High Court of England and Wales warned lawyers [] that they could face criminal prosecution for presenting false material generated by artificial intelligence, after a series of cases cited made-up quotes and rulings that did not exist."); Harry Surden, *Artificial Intelligence and Law — An Overview of Recent Technological Changes in Large Language Models and Law*, 96 U. Col. L. Rev. 376 [2025]; Andrew Coan, Harry Surden, *Artificial Intelligence and Constitutional Interpretation*, 96 U. Col. L. Rev. 413 [2025].

Footnote 8 Mark H. Francis and Ashwini Jarral (Lead Authors), *A Legal Practitioners Guide to AI and Hallucinations*, AI Policy Consortium for Law & Courts, Nat'l Ctr for State Courts [Jan. 2026].

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